

**WEST VALLEY-MISSION COMMUNITY COLLEGE
DISTRICT BOARD OF TRUSTEES**

RESOLUTION NO. 23091203

**SUPPORT THE USE OF THE CALIFORNIA EDUCATION CODE SECTION 81700 PROJECT
DELIVERY METHOD FOR THE
STEM CENTER AT MISSION COLLEGE (MEASURE W – PROJECT MC-06)**

At a meeting of the District Board of Trustees held on September 12, 2023 the following Resolution was adopted by at least two-thirds vote of all of its members:

WHEREAS, California Education Code section 81700, et seq. (Education Code section 81700) authorizes community college districts to enter into design-build contracts for projects with design and construction costs exceeding \$2.5 Million.

WHEREAS, the STEM Center project at Mission College will include new construction of a STEM Center building and associated site work. The building complex will house labs, instructional support spaces, offices, and shared spaces to support student life.

The project budget is approximately \$72 Million. Project budgets are closely monitored and may be revised as necessary to meet program needs through formal bond list revisions as approved by the Board of Trustees.

The scope of the work includes but is not limited to:

- New construction of a STEM Center building
- Exterior improvements to pathways
- Associated site work as required

WHEREAS, California Education Code section 81700 states that the “benefits of a design-build contract project method include an accelerated completion of the projects, cost containment, reduction of construction complexity, and/or reduced exposure to risk for the community college district.”

WHEREAS, delivery of the STEM Center project using a traditional procurement method would take approximately 60 months to procure design services, prepare construction documents, bid and award construction services, and construct the project.

WHEREAS, using the Education Code section 81700 delivery method for the STEM Center project is anticipated to shorten the project delivery schedule by approximately six months and enable cost containment. This is possible because certain procurement steps are consolidated, the design process is streamlined, and changes and associated costs are minimized during construction.

WHEREAS, in consideration of the foregoing, the Board of Trustees has determined that the use of the design-build process for the STEM Center project is in the best interest of West Valley Mission Community College District as it will accomplish one or more of the following objectives: (i) reduce comparable project costs; (ii) expedite the project's completion; or (iii) provide features not achievable through traditional design-bid-build method.

RESOLVED, the Board of Trustees approves the use of the California Education Code section 81700 project delivery method for the STEM Center project.

FURTHER RESOLVED, that these Resolutions shall be effective as of the date of adoption.

The Board of Trustees takes the following action on these Resolutions:

AYES _____

NOES _____

ABSTAIN _____

ABSENT _____

President, Board of Trustees

The foregoing Resolutions are adopted by the Board of Trustees of the West Valley-Mission Community College District at a regularly scheduled meeting of the Board of Trustees this ____ day of _____, 20____ by the foregoing vote.

Secretary, Board of Trustees